

CV-26-001469 AARZA GROUP INC vs MARTIN, ROBERT - Defendants' CCTMO LLC and T-Mobile West Tower LLC's Demurrer to First Amended Complaint of Plaintiff Aarza Group Inc. - CONTINUED to September 22, 2026, at 8:30 am in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The demurrer is procedurally defective. It fails to comply with Code of Civil Procedure section 430.41, which requires that the parties meet and confer "in person, by telephone, or by video conference." Here, the effort to meet and confer was insufficient. The only attempt to comply with Code of Civil Procedure section 430.41 was the delivery of a written email communication sent on July 14, 2026, to which Plaintiff did not respond. (Declaration of Sandra Vucinic, ¶¶ 4–5.) A communication sent by email is insufficient. The Legislature's specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties. Accordingly, the Court CONTINUES the hearing on the demurrer to September 22, 2026, at 8:30 am in Department 22. The parties are ordered to meet and confer by one of the methods set forth in Code of Civil Procedure § 430.41(a) by no later than six court days before the hearing. Moving Party to file and serve a declaration no later than five court days before the hearing describing the efforts to meet and confer and any narrowing of the issues. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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